

SAMPLE RESEARCH

This project examines how procedural law in action, rather than statutes alone, reshaped rural credit relations in colonial India between 1820 and 1930. Building on debates in economic and legal history, the project argues that divergent credit outcomes across provinces cannot be explained by statutes alone. Instead, they are best understood through the sequenced mechanics of civil procedure i.e., service of process, hearings and ex parte practices, decrees, and the timing and modalities of execution. Drawing on the procedural turn in legal history and scholarship on colonial legal pluralism, the study treats civil courts as heterogeneous institutions whose practices interacted variably with village fora such as panchayats, damdupat rules, and pre-emption norms.

Empirically, the project undertakes a controlled comparison between the Bombay and Punjab Presidencies, with supplementary triangulation from Bengal and Madras. To this end, it examines district-level court records, execution registers, settlement reports, customary law manuals, and high court archives. These sources are systematically converted into a reproducible, machine-readable procedural dataset, enabling cross-presidency comparison as well as the visualisation of execution clusters and creditor-debtor networks. Computational tools, including structured coding, GIS mapping, and network reconstruction, are employed to render procedural sequences legible without displacing doctrinal or contextual analysis.

The study produces a procedural legal history of credit, clarifying how enforcement practices redistributed risk, reshaped landholding, and generated differentiated outcomes. By foregrounding the operational life of civil procedure, it offers a novel explanation for provincial variation in rural credit markets, integrates legal pluralism with economic history, and advances interdisciplinary understanding of how law in practice informed socio-economic relations.

Methodology:

1. **Archival Research:** Primary materials will be drawn from Maharashtra State Archives (Mumbai, Pune, Kolhapur), Punjab State Archives (Patiala, Chandigarh), District Court records (selected districts - plaint registers, order books, decree sheets, execution ledgers, attachment lists, sale proclamations), High Court archives (Bombay, Lahore), Private Papers (Gokhale Institute private collections, Punjab Canal Colony papers), Settlement and land records (jamabandi, khasra, mutation registers), Gazetteers, Law Reports & Manuals (Morley's *Digest*, Harcourt Butler reports, Customary Law Manuals).
2. **Structured Case-Level Reconstruction:** Each case is broken into procedural stages, enabling reconstruction of sequences: filing → service of process → appearance/default → interim orders → hearing → decree → execution → attachment → sale → confirmation. This permits cross-presidency comparison in a machine-readable format.
3. **Spatial and Network Visualization (non-causal):** Used only for visualisation, not causal inference. It includes (i) geocoding execution sales to identify clusters of distressed land transfers (QGIS), (ii) mapping creditor-debtor network where archives permit (Gephi/Python), and (iii) comparing delay patterns across districts. These visualisations are used to render procedural sequences and enforcement patterns legible, complementing archival and doctrinal analysis rather than substituting for it.
4. **Comparative Legal Analysis:** Close reading of procedural codes to connect doctrine with judicial practice. Sources include (but are not limited to) 1827 Regulations, CPC (1859, 1877, 1882), Presidency Small Cause Court Acts, Provincial amendments, Customary law manuals. This analysis situates observed procedural variation within the evolving statutory and regulatory framework governing civil litigation.